

Amar Nath @ Vinay v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 May 2023 · 2023:AHC:120548-DB · WRIT - C No. - 18729 of 2023 · **Petition disposed; theft recovery withdrawn; fresh order after hearing under the Supply Code.**

HEADNOTE

A notice recovering Rs.77,891 for alleged theft of electricity was withdrawn by the Electricity Department, which undertook to pass a fresh order after hearing. The writ was disposed of on that statement, with liberty to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. The theft charge and the amount were not decided.

FACTUAL SUMMARY

Amar Nath alias Vinay challenged a notice dated 9 December 2022 issued by respondent no. 2 for recovery of Rs.77,891 in a case of alleged theft of electricity. Counsel for the Electricity Department informed the Division Bench that the impugned recovery had been withdrawn and that a fresh order would be passed after the petitioner was given an opportunity of hearing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

theft recovery withdrawn; fresh order after hearing

HOLDING

Where the licensee withdraws a notice for recovery of Rs.77,891 for alleged theft of electricity and undertakes to pass a fresh order after hearing, the writ challenging that notice is disposed of, with liberty to proceed afresh strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1-3

FLAG The order invokes the Supply Code generally; no numbered clause is stated.

PRINCIPLE TAGS

theft-recovery-afresh-under-supply-code After a theft-recovery notice is withdrawn, any fresh order must follow a hearing and the procedure prescribed by the U.P. Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS LIABLE FOR THE ALLEGED THEFT OF ELECTRICITY AND FOR RS.77,891

The impugned recovery was withdrawn. The Court did not decide the charge or the amount and left a fresh order to be passed after hearing. ¶ 1-3